

Renu v. State of U.P.

Allahabad High Court · Division Bench · 2 April 2018 · WRIT - C No. 11951 of 2018 · **Writ disposed; respondents directed to furnish details of 5 March 2018 bill.**

HEADNOTE

After an earlier order restoring supply on deposit of Rs. 50,000 and granting liberty to seek bill correction under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the licensee raised a further bill of Rs. 3,12,242 without explaining the calculation. On counsel's statement, the Allahabad High Court disposed of the subsequent writ by directing the respondents to furnish the petitioner the details of the amount raised in the bill dated 5 March 2018.

FACTUAL SUMMARY

The petitioner's supply had been disconnected on a demand of Rs. 2,95,618. In Writ-C No. 54746 of 2017 the Court, on 17 November 2017, granted liberty to invoke Clause 6.5 of the Supply Code, 2005 for bill rectification and directed restoration if she deposited Rs. 50,000. She deposited that sum. By communication dated 5 March 2018 the Department enclosed a bill generated the same day for Rs. 3,12,242, without stating the basis of calculation. She filed this writ seeking those particulars.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

particulars of bill raised after Clause 6.5 liberty

HOLDING

Where, after the consumer deposits the restoration amount fixed in an earlier order granting liberty to seek bill correction under Clause 6.5, the licensee raises a further bill without disclosing the basis of calculation, the writ may be disposed of by directing the respondents to furnish the consumer the details of the amount raised in that bill. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 After an earlier order restoring supply on deposit of Rs. 50,000 and granting liberty to seek bill correction under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the licensee raised a further bill of Rs. 3,12,242 without explaining the calculation.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL DATED 5 MARCH 2018 FOR RS. 3,12,242

The Court did not decide whether the demand was payable or whether Clause 6.5 rectification had been completed; it only directed disclosure of bill particulars. ¶ 1